BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	Case No. 3:26-cv-07504-LJC **PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)** Set No.: 1 (Fed. R. Civ. P. 26, 36) Judge: Hon. Lisa J. Cisneros

PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)

TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM) AND ITS ATTORNEYS OF RECORD:

Under Federal Rules of Civil Procedure 26 and 36, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program) admit, in writing and under Rule 36, the truth of each matter below, and serve a written response on Plaintiff within thirty (30) days after service.

INSTRUCTIONS

1. Each matter is admitted unless, within 30 days after service, you serve a written answer or objection signed under Rule 26(g) (Fed. R. Civ. P. 36(a)(3)).

2. A denial must fairly respond to the substance of the matter; when good faith requires, specify the part admitted and qualify or deny only the rest (Rule 36(a)(4)).

3. You may assert lack of knowledge only if you state that you have made reasonable inquiry and that the information you know or can readily obtain is insufficient (Rule 36(a)(4)).

4. A party that fails to admit a matter later proved may be ordered to pay the reasonable expenses of proof (Rule 37(c)(2)).

DEFINITIONS

"YOU" and "YOUR" means Defendant HOPE as defined below.

"PLAINTIFF" means Brendan Ngehsi Newanforbi.

"HOPE" means Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program, appearing as HOPE Program, A Licensed Clinical Social Worker Professional Corporation), including its officers, employees, and agents, and any management or records contractor acting for it.

"SMITH" means Defendant Shannon Smith, LCSW.

"CDCR" means the California Department of Corrections and Rehabilitation, including its Division of Adult Parole Operations (DAPO) and any parole agent or supervisor.

"CTM" means a Containment Team Meeting or similar case conference among a treatment provider, CDCR, and/or a polygraph examiner concerning a parolee.

"COMPLETION DETERMINATION" means any recommendation, decision, or report about whether a parolee has completed, graduated from, or may be discharged or titrated from sex-offender treatment, including any statement that the parolee has not completed treatment.

"SAN JOAQUIN ACTION" means Newanforbi v. Palacios et al., San Joaquin County Superior Court, in which HOPE was a party.

"STOCKTON SITE" means HOPE's Stockton, California treatment location.

"DOCUMENT" means has the full meaning of Fed. R. Civ. P. 34(a)(1)(A), including electronically stored information (ESI) such as email, text and app-based messages, EHR entries, audit logs, and audio or video recordings.

"COMMUNICATION" means any transmission of information by any means, including email, text or app message (on any device, including a personal device used for work), letter, portal message, and recorded meeting.

"IDENTIFY" means (a) for a person: full name, last known employer, title, and business contact; (b) for a DOCUMENT: type, date, author, recipients, and Bates number if produced.

"RELEVANT PERIOD" means January 1, 2021 to the date of response, unless a request states otherwise.

REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1:

During the RELEVANT PERIOD, HOPE provided sex-offender treatment to PLAINTIFF under a contract between HOPE and CDCR.

REQUEST FOR ADMISSION NO. 2:

PLAINTIFF's participation in HOPE's program was a condition of his parole.

REQUEST FOR ADMISSION NO. 3:

HOPE was certified by the California Sex Offender Management Board during the RELEVANT PERIOD.

REQUEST FOR ADMISSION NO. 4:

HOPE was paid by CDCR for treatment services HOPE provided to PLAINTIFF.

REQUEST FOR ADMISSION NO. 5:

HOPE reported PLAINTIFF's treatment status to CDCR at each CTM concerning PLAINTIFF.

REQUEST FOR ADMISSION NO. 6:

At no CTM concerning PLAINTIFF did HOPE recommend that PLAINTIFF be found to have completed treatment.

REQUEST FOR ADMISSION NO. 7:

Under HOPE's practice during the RELEVANT PERIOD, a parolee could not be found to have completed treatment without a HOPE recommendation communicated to CDCR.

REQUEST FOR ADMISSION NO. 8:

Before October 2024, HOPE's policy was that a parolee on active parole supervision continued in treatment until parole ended.

REQUEST FOR ADMISSION NO. 9:

Before October 2024, HOPE's treatment-completion policy for parolees followed a CDCR requirement.

REQUEST FOR ADMISSION NO. 10:

HOPE's treatment-completion policy for parolees applied to all parolee clients at the STOCKTON SITE.

REQUEST FOR ADMISSION NO. 11:

HOPE did not change any treatment-completion policy for parolees after April 17, 2025.

REQUEST FOR ADMISSION NO. 12:

No HOPE parolee client at the STOCKTON SITE received a favorable COMPLETION DETERMINATION while on active parole supervision between January 1, 2021 and September 30, 2024.

REQUEST FOR ADMISSION NO. 13:

HOPE's revenue for a parolee client ends when the client is discharged from HOPE's program.

REQUEST FOR ADMISSION NO. 14:

HOPE characterized PLAINTIFF's homework as "partially completed" in at least one communication to CDCR.

REQUEST FOR ADMISSION NO. 15:

HOPE did not provide PLAINTIFF a written explanation of the criteria he had to meet to complete treatment.

REQUEST FOR ADMISSION NO. 16:

HOPE did not provide PLAINTIFF an opportunity to contest HOPE's COMPLETION DETERMINATIONS before they were reported to CDCR.

REQUEST FOR ADMISSION NO. 17:

Before August 2025, PLAINTIFF complained to HOPE staff about HOPE's treatment-completion practices.

REQUEST FOR ADMISSION NO. 18:

In 2025, a HOPE employee described PLAINTIFF to CDCR as "disruptive."

REQUEST FOR ADMISSION NO. 19:

In 2025, a HOPE employee described PLAINTIFF to CDCR as a "ringleader."

REQUEST FOR ADMISSION NO. 20:

In 2025, Katie Palacios stated, in substance, that when PLAINTIFF complains, other clients join in.

REQUEST FOR ADMISSION NO. 21:

HOPE knew during the RELEVANT PERIOD that CDCR could treat a parolee's failure to attend HOPE sessions as a parole violation.

REQUEST FOR ADMISSION NO. 22:

HOPE knew during the RELEVANT PERIOD that HOPE's reports to CDCR could affect the conditions of a parolee's supervision.

REQUEST FOR ADMISSION NO. 23:

CTMs concerning PLAINTIFF were video recorded.

REQUEST FOR ADMISSION NO. 24:

HOPE has not deleted or overwritten any recording of a CTM concerning PLAINTIFF since January 1, 2025.

REQUEST FOR ADMISSION NO. 25:

Dr. Cristina Loree testified in the In re Dwyer habeas proceeding in San Joaquin County Superior Court.

REQUEST FOR ADMISSION NO. 26:

HOPE was aware of the In re Dwyer proceeding before PLAINTIFF filed the SAN JOAQUIN ACTION.

REQUEST FOR ADMISSION NO. 27:

Cal. Code Regs., tit. 15, section 3574(f), as amended effective April 17, 2025, requires that a Containment Team determination to retain a supervised person in a sex offender management program be supported by good cause and stated in writing, signed by both the sex offender treatment provider and the parole agent on CDCR Form 3043.

REQUEST FOR ADMISSION NO. 28:

SMITH had final authority over HOPE's treatment-completion policies during the RELEVANT PERIOD.

REQUEST FOR ADMISSION NO. 29:

HOPE's verified response to Special Interrogatory No. 7 in the SAN JOAQUIN ACTION stated that, before October 2024, CDCR policy required supervised persons to continue some form of treatment as part of their supervision.

REQUEST FOR ADMISSION NO. 30:

HOPE's verified response to Special Interrogatory No. 38 in the SAN JOAQUIN ACTION stated that Responding Party "had no knowledge of Plaintiff's 'CDL employment obligations.'"

REQUEST FOR ADMISSION NO. 31:

HOPE's response to Special Interrogatory No. 28 in the SAN JOAQUIN ACTION stated that HOPE had no knowledge of the Dwyer decision.

REQUEST FOR ADMISSION NO. 32:

HOPE knew of PLAINTIFF's employment as a commercial driver before January 1, 2023.

REQUEST FOR ADMISSION NO. 33:

In at least one written report concerning PLAINTIFF transmitted to CDCR, HOPE stated that PLAINTIFF "is fixated on lawsuits instead of subject material."

REQUEST FOR ADMISSION NO. 34:

The statement quoted in Request for Admission No. 33 refers to lawsuits filed by PLAINTIFF.

REQUEST FOR ADMISSION NO. 35:

HOPE signed at least one CDCR Form 3043 concerning PLAINTIFF.

REQUEST FOR ADMISSION NO. 36:

HOPE did not sign a CDCR Form 3043 stating good cause to retain PLAINTIFF in a sex offender management program following the August 19, 2025 CTM.

REQUEST FOR ADMISSION NO. 37:

HOPE has no record that a written determination to retain PLAINTIFF in a sex offender management program following the August 19, 2025 CTM was delivered to PLAINTIFF within 30 calendar days of that CTM.

REQUEST FOR ADMISSION NO. 38:

HOPE did not sign a CDCR Form 3043 stating good cause to retain PLAINTIFF in a sex offender management program following the February 18, 2026 CTM.

REQUEST FOR ADMISSION NO. 39:

HOPE has no record that a written determination to retain PLAINTIFF in a sex offender management program following the February 18, 2026 CTM was delivered to PLAINTIFF within 30 calendar days of that CTM.

REQUEST FOR ADMISSION NO. 40:

At no time after April 17, 2025 did HOPE score PLAINTIFF at 11 or higher on the Level of Service/Case Management Inventory (LS/CMI).

REQUEST FOR ADMISSION NO. 41:

Katie Palacios acted within the course and scope of her employment or agency with HOPE when communicating with CDCR about PLAINTIFF.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 3:26-cv-07504-LJC

V.

SHANNON SMITH, LCSW;
HOPE PSYCHOTHERAPY, INC.
Defendants

PROOF OF SERVICE

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I hereby certify that on *(Date)* , I served a copy of the attached

PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM),

by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address(es) hereinafter listed:

(List Name and E-mail Address of Each Defendant or Attorney Served)

Cynthia G. Lawrence, Esq. — cynthia@sims-law.net
Blaze Van Dine, Esq. — blaze@sims-law.net
Eric T. Martinez, Esq. — emartinez@sims-law.net
Sims, Lawrence & Broghammer (e-service) — slb-eservice@sims-law.net

Attorneys for Defendants Shannon Smith, LCSW, and
HOPE Psychotherapy, Inc. (d/b/a HOPE Program)

Service by electronic means under Fed. R. Civ. P. 5(b)(2)(E),
pursuant to the written consent of counsel for Defendants.

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
v.
SHANNON SMITH, LCSW et al.

Case Number: 3:26-cv-07504-LJC
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.

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Brendan Ngehsi Newanforbi, In Propria Persona